

TENTATIVE RULING(S) FOR August 27, 2026

Department S37 – Judge Winston Keh

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CIVSB2526795

Plata v.Key Essential

TENTATIVE RULING(S):

This is a labor dispute case. On April 22, 2026, Defendant filed the instant Demurrer, asserting that the Complaint fails to state sufficient facts to support a PAGA cause of action and is uncertain. Plaintiff filed an opposition on August 14, 2026, and Defendant filed a reply on August 20, 2026.

1. Request for Judicial Notice

Defendant requests judicial notice of the following documents:

1. Exhibit 1 – Plaintiff's initial PAGA Notice, dated December 12, 2024;
2. Exhibit 2 – Letter from the Labor and Workforce Development Agency ("LWDA"), dated February 13, 2025;

3. Exhibit 3 – Plaintiff’s amended PAGA Notice, dated March 28, 2025;
4. Exhibit 4 – Complaint filed in this action;
5. Exhibit 5 – Complaint filed in *Anthony Vallacqua v. Quality Transformer & Electronics*, Santa Clara County Superior Court, Case No. 25CV468866; and
6. Exhibit 6 – Amended PAGA Notice filed in *Vallacqua v. Quality Transformer & Electronics*.

Plaintiff objects to judicial notice of Exhibits 2, 5, and 6 on the grounds of irrelevance and hearsay.

The Court may take judicial notice of the “[o]fficial acts of the legislative, executive, and judicial departments of the United States and of any state of the United States.” (Evid. Code, § 452, subd. (c).) Defendant, however, cites no authority establishing that a PAGA letter directed to the LWDA becomes a record of an official act of a state agency merely because it is addressed to that agency.

The PAGA Notices, Exhibits 1 and 3, are nevertheless judicially noticeable pursuant to Evidence Code section 452, subdivision (h), which permits judicial notice of written instruments referenced in a complaint and not subject to factual dispute. (*Performance Plastering v. Richmond American Homes* (2007) 153 Cal.App.4th 659, 666 n.2.) Plaintiff references the PAGA Notices in paragraphs 8 and 9 of the Complaint and does not dispute their contents in opposition.

Accordingly, the Court GRANTS Defendant’s request for judicial notice as to Exhibits 1 and 3 pursuant to Evidence Code section 452, subdivision (h).

The Court also GRANTS Defendant’s request for judicial notice of the existence of Exhibit 2 pursuant to Evidence Code section 452, subdivision (c), but not as to the truth of the statements contained therein. Although the Court may take judicial notice of the existence of a document, the truth of statements contained in the document and their proper interpretation are not subject to judicial notice. (*StorMedia Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9.)

The Court may also take judicial notice of “[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States” including its register of actions. (Evid. Code § 452, subd. (d); *City and County of San Francisco v. Carraro* (1963) 220

Cal.App.2d 509, 527.) However, only relevant material is subject to such excused burden of evidentiary proof, and the court should decline judicial notice of material “that has no bearing on the limited legal question at hand.” (*Mangini v. R.J. Reynolds Tobacco Co.* (1994) 7 Cal.4th 1057, 1063 (citing, *People v. Stoll* (1989) 49 Cal.3d 1136, 1144, fn. 5.)

Accordingly, the Court DENIES Defendant’s request for judicial notice as to Exhibits 4 through 6. Judicial notice of Exhibit 4 is unnecessary because it is the Complaint filed in this action. Exhibits 5 and 6 concern a separate action and are irrelevant to the limited issue presented by the Demurrer because they do not pertain to the sufficiency of the PAGA Notices in this action.

2. Merits of the Demurrer

A. PAGA Pre-Litigation Notice Requirements

Before commencing a civil action under PAGA, an aggrieved employee must provide written notice by online filing with the LWDA and by certified mail to the employer, identifying the Labor Code provisions allegedly violated and the facts and theories supporting the alleged violations. (Lab. Code, §§ 2699.3, subds. (a)(1)(A), (c)(1)(A), 2699.5; *Esparza v. Safeway, Inc.* (2019) 36 Cal.App.5th 42, 59 [“Before bringing a PAGA action, an aggrieved employee must give the LWDA written notice of the facts and theories supporting the Labor Code violations alleged. [Citation] ... PAGA’s pre-filing notice requirement is a mandatory precondition to bringing a PAGA claim.”].)

The purpose of the notice requirement is to permit the LWDA to determine whether to allocate resources to an investigation, a determination better made with knowledge of the allegations and the factual basis supporting them. (*Williams v. Superior Court (Marshalls of CA, LLC)* 3 Cal.5th 531, 545-546.) The notice must contain more than bare allegations or legal conclusions parroting the Labor Code provisions allegedly violated. (*Brown v. Ralphs Grocery Co.* (2018) 28 Cal.App.5th 824, 836-837 (*Brown*).) It must provide sufficient facts to support the alleged violations. (*Uribe v. Crown Building Maintenance Co.* (2021) 70 Cal.App.5th 986, 1004.) The notice, however, need only provide minimal facts supporting the alleged Labor Code violation. (*Brown, supra*, 28 Cal.App.4th at p. 838.)

Defendant contends that Plaintiff's PAGA Notice does not provide sufficient "facts and theories" to support the alleged Labor Code violations. Plaintiff's Amended PAGA Notice is attached as Exhibit 3 to Defendant's request for judicial notice and is referenced in paragraph 9 of the Complaint.

The Amended Notice identifies Plaintiff as a former non-exempt employee of Defendant who worked as a behavior therapist from approximately August 31, 2023, through approximately July 3, 2024. (RJN Exh. 3 at p. 1.) It also identifies the non-exempt employees Plaintiff seeks to represent. (*Ibid.*)

The Amended Notice sets forth the alleged "facts and theories" supporting the Labor Code violations on pages 1 through 6. Considered as a whole, the Notice provides sufficient facts to support each of the claimed violations.

For example, the allegations concerning unpaid minimum and overtime wages and denied meal and rest breaks (Lab. Code, §§ 226.7, 510, 1197) identify the alleged practices resulting in uncompensated work time, including off-the-clock work, and allege that the overtime rate failed to include all remunerations. The Notice also identifies specific practices allegedly resulting in noncompliant meal periods, including interrupted meal breaks, failures to provide or timely provide meal breaks, requiring employees to carry cellular telephones or walkie-talkies during meal breaks, and preventing employees from leaving the premises.

Based on these factual allegations, the Notice also sufficiently identifies the alleged violations concerning inaccurate wage statements, untimely wages during employment, and untimely wages at separation (i.e., Lab. Code, §§ 201.3, 203, 204, 226). The Notice likewise identifies the expenses allegedly not reimbursed in support of the Labor Code section 2802 violation.

The Amended Notice is distinguishable from the notice found insufficient in *Alcantar v. Hobart Services* (2015) 800 F.3d 1047, 1057, where the court found plaintiff's letter was merely "a string of legal conclusions with no factual allegations or theories of liability to support them" and therefore insufficient to allow the LWDA to intelligently assess the seriousness of the alleged violations. Here, Plaintiff's Amended Notice contains factual allegations supporting the alleged violations.

Accordingly, the Court finds that the Amended PAGA Notice satisfies PAGA's pre-filing notice requirement and OVERRULES Defendant's Demurrer to the extent it challenges the sufficiency of that Notice.

B. Sufficiency of the Complaint

Defendant further contends that the PAGA cause of action is deficient, arguing that Plaintiff's counsel repeatedly reuses templates in labor dispute cases and asking the Court to consider a Complaint and PAGA Notice filed by Plaintiff's counsel in *Vallacqua v. Quality Transformer & Electronics*, Santa Clara County Superior Court, Case No. 25CV468866. (See RJN at Exhs. 5, 6.)

California requires a complaint to contain statements of the ultimate facts, in ordinary and concise language, constituting the cause of action. (Code Civ. Proc., §425.10; *Doheny Park Terrace Homeowners Assn, Inc. v. Truck Insurance Exchange* (2005) 132 Cal.App.4th 1076, 1099.) "Ultimate facts" are the essential elements of the cause of action. (*Estes v. Eaton Corp.* (2020) 51 Cal. App. 5th 636, 643, fn. 2.) A complaint need only allege facts sufficient to state a cause of action; it need not allege every evidentiary fact that may ultimately form part of the plaintiff's proof. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.)

Here, Plaintiff alleges that she was employed by Defendant and suffered the same violations as the aggrieved employees. (Compl. ¶¶ 1, 4.) The Complaint alleges that, during the PAGA period, Defendant maintained policies and practices resulting in unpaid minimum and overtime wages because Defendant failed to accurately track and/or pay for all minutes actually worked. Plaintiff further alleges that Defendant forced or permitted employees to work off the clock by requiring employees to arrive early or leave late without being able to clock in for all such time, wait in lines to clock in, perform pre-shift and post-shift tasks off the clock, work during meal periods after clocking out, don and doff uniforms and/or safety equipment off the clock, attend company meetings off the clock, make telephone calls off the clock, and undergo temperature checks off the clock. Plaintiff also alleges that Defendant failed to communicate client cancellations and/or schedule changes to employees. When overtime was paid, Plaintiff alleges that the rate was

incorrect because certain remunerations, including non-discretionary bonuses, incentive pay, and meal allowances, were not included in the regular rate of pay. (Compl. ¶¶ 16-18.)

Plaintiff further alleges that Defendant maintained policies that resulted in noncompliant meal and rest periods because employees were not provided timely breaks or were not provided breaks at all, breaks were interrupted or shortened, employees were required to carry communication equipment, employees were required to complete paperwork, write reports, and/or create session notes during meal periods, and employees were not permitted to leave the premises. (Compl. ¶¶ 19-20.) Plaintiff alleges that these practices resulted in inaccurate wage statements and untimely payment of wages. (Compl. ¶¶ 21-23.)

Finally, Plaintiff alleges that Defendant failed to comply with Labor Code notice requirements, failed to reimburse aggrieved employees for business expenses, failed to provide proper sick leave, failed to pay accrued vacation upon separation, prevented aggrieved employees from disclosing violations of law and certain information to other employers for purposes of preventing competition, and prevented aggrieved employees from engaging in lawful conduct during non-work hours. (Compl. ¶¶ 24-32.)

Considering the Complaint as a whole, the Court finds that Plaintiff has adequately alleged the facts supporting the asserted Labor Code violations. The allegations are sufficient to state the cause of action, and Defendant's contention that Plaintiff's counsel may have used similar allegations in another action does not establish that the Complaint fails to state a claim.

Accordingly, the Court OVERRULES Defendant's Demurrer to the extent it challenges the sufficiency of the allegations in the Complaint.

RULING

For the foregoing reasons, the Court rules as follows:

1. Request for Judicial Notice

- a. The Court GRANTS Defendant's request for judicial notice as to Exhibits 1 and 3 pursuant to Evidence Code section 452, subdivision (h);

b. The Court GRANTS Defendant's request to take judicial notice of the existence of Exhibit 2 pursuant to Evidence Code section 452, subdivision (c), but not the truth of matters asserted within Exhibit 2; and

c. The Court DENIES Defendant's request for judicial notice as to Exhibits 4 through 6 as unnecessary and irrelevant.

2. The Court OVERRULES Defendant's Demurrer to the extent it argues that Plaintiff's PAGA Notice is insufficient.

3. The Court OVERRULES Defendant's Demurrer to the extent it alleges that the allegations in the Complaint are insufficiently alleged.

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CIVSB2406055

Padilla vs. Del Rosa Villaidence et al (1 of 2)

MOTION TO STRIKE OR TAX COSTS

Analysis

Plaintiff separately moves to strike or tax the memoranda of costs filed by dismissed Defendants Providence Group, Inc., Providence Group of Southern California, LLC, and 2018 N. Del Rosa Avenue Propco, LLC.

The original memoranda sought identical or substantially identical costs, and Plaintiff argued that permitting each dismissed Defendant to recover the same jointly incurred expenses would result in an impermissible multiple recovery. Plaintiff's motion identifies deposition, service, and interpreter expenses among the challenged items.

At the August 4, 2026 hearing, the Court found that the memoranda of costs filed by 2018 N. Del Rosa Avenue Propco, LLC and Providence Group of Southern California, LLC had been withdrawn. The motion was therefore moot as to those Defendants. The Court ordered Providence Group, Inc. to file a supplemental memorandum of costs with supporting exhibits or invoices and permitted Plaintiff to renew its challenge if necessary. The matter was continued to August 27, 2026.

Accordingly, the only remaining cost issue is Providence Group, Inc.'s memorandum of costs. A dismissed defendant qualifies as a prevailing party for purposes of Code of Civil Procedure section 1032 and ordinarily is entitled to allowable costs. Plaintiff's argument that all costs must be stricken merely because Providence Group participated in a joint defense is too broad. Filing fees, necessary deposition costs, service expenses, and qualifying interpreter costs are potentially allowable under Code of Civil Procedure section 1033.5.

The issue, therefore, is not whether Providence Group was entitled to seek costs, but whether the particular costs claimed were actually incurred by Providence Group and were reasonably necessary to its defense.

Shared representation does not permit several defendants to recover the same expense multiple times. *Charton v. Harkey* (2016) 247 Cal.App.4th 730, 743-744, makes clear that jointly represented prevailing parties do not lose their entitlement to costs, but the trial court must examine whether shared costs were actually incurred for the prevailing defendant and were reasonably necessary; neither automatic duplication nor mechanical per-capita allocation is appropriate.

Thus, Providence Group's participation in a joint defense does not, standing alone, establish that the costs it claims are unrecoverable. At the same time, Providence Group must establish its entitlement to the particular costs claimed. Where, as here, Plaintiff challenges shared expenses as potentially duplicative, the Court must have a sufficient evidentiary basis to determine that the claimed expenses were actually incurred for Providence Group and were reasonably necessary to its defense.

In Plaintiff's Notice of Non-Opposition, Plaintiff cites "California Rules of Conduct rule 8.54(c)," apparently intending to cite California Rules of Court, rule 8.54(c), and argues that Providence Group, Inc.'s failure to oppose constitutes consent to granting the motion. Rule 8.54(c), however, governs appellate motion practice and does not apply to motions in the superior court. Non-opposition does not eliminate this Court's obligation to determine whether claimed costs are allowable.

The Court's August 4, 2026 minute order provided Providence Group with an express opportunity to substantiate its claimed costs. The Court ordered Providence Group, Inc. to file a supplemental memorandum of costs with supporting exhibits and/or invoices. That order afforded Providence Group an opportunity to address Plaintiff's contention that certain expenses were jointly incurred and potentially duplicative and to provide documentation establishing its entitlement to those costs. As of August 24, 2026, Providence Group has not filed the supplemental memorandum or supporting documentation. The record therefore remains limited to Providence Group's original memorandum of costs.

Providence Group's original memorandum seeks \$3,361.47, consisting of \$935 in filing and motion fees, \$1,854.19 in deposition costs, \$347.28 in service of process costs, and \$225 in interpreter fees.

The \$935 in filing and motion fees is attributable to Providence Group's answer and motion for summary judgment and constitutes an allowable category of costs. Plaintiff has not established a sufficient basis on the present record to tax that amount.

The remaining expenses—\$1,854.19 in deposition costs, \$347.28 in service of process costs, and \$225 in interpreter fees—require a different analysis. Plaintiff specifically challenged these expenses as duplicative costs associated with the joint defense of multiple defendants. In response to that challenge, the Court gave Providence Group an opportunity to substantiate the expenses through a supplemental memorandum and supporting documentation.

Providence Group did not do so.

As a result, the present record does not establish that the \$1,854.19 in deposition costs, \$347.28 in service costs, and \$225 interpreter fee were actually incurred on behalf of Providence Group

rather than being expenses incurred jointly for multiple defendants. Nor does the present record permit the Court to determine what portion, if any, of those expenses was reasonably necessary to Providence Group's individual defense. The Court therefore does not conclude that deposition, service, or interpreter expenses incurred in a joint defense are categorically unrecoverable. Rather, the Court taxes the challenged expenses because Providence Group, after being expressly afforded an opportunity to substantiate them, has failed to provide sufficient documentation establishing its entitlement to recover them.

Accordingly, Plaintiff's Motion to Strike or Tax Costs is **GRANTED IN PART** as to Providence Group, Inc. The Court taxes \$1,854.19 in deposition costs, \$347.28 in service of process costs, and \$225 in interpreter fees, for a total reduction of \$2,426.47. The Court allows the \$935 in filing and motion fees.

RULING

The Court rules as follows:

1. As to Defendants **2018 N. Del Rosa Avenue Propco, LLC** and **Providence Group of Southern California, LLC**, Plaintiff's Motion to Strike or Tax Costs is **MOOT** because those Defendants withdrew their respective Memoranda of Costs.
2. As to Defendant **Providence Group, Inc.**, Plaintiff's Motion to Strike and/or Tax Costs is **GRANTED IN PART**.
3. Providence Group, Inc. has not filed the supplemental Memorandum of Costs or supporting documentation as ordered by the Court on August 4, 2026.
4. The Court **TAXES** \$1,854.19 in deposition costs, \$347.28 in service of process costs, and \$225 in interpreter fees, for a total reduction of **\$2,426.47**.
5. The Court **ALLOWS** \$935 in filing and motion fees.
6. Accordingly, of Providence Group, Inc.'s original memorandum of costs totaling **\$3,361.47**, the Court allows **\$935** and taxes **\$2,426.47**.

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CIVSB2406055

Padilla vs. Del Rosa Villaidence et al (2 of 2)

TENTATIVE RULING

I. FACTUAL AND PROCEDURAL BACKGROUND

On February 20, 2024, Plaintiff Jose Sencion Padilla filed this action against Defendants Del Rosa Villa, LLC (dismissed); Del Rosa Villaidence Opco, LLC (Defendant or “Del Rosa”); Providence Group of Southern California, LLC (dismissed); Providence Group, Inc. (dismissed); and 2018 N. Del Rosa Avenue Propco, LLC (dismissed). Plaintiff asserts causes of action for (1) elder abuse and neglect, (2) statutory violations of the Patient Bill of Rights, and (3) wrongful death.

Plaintiff, on behalf of decedent Maria Sencion, alleges that between September 4, 2022 and September 6, 2022, Defendants failed to provide adequate staffing, appropriate diet and feeding